Syllabus

MULLIN, SECRETARY, DEPARTMENT OF HOMELAND SECURITY, ET AL. *v.* DOE ET AL.

CERTIORARI BEFORE JUDGMENT TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 25–1083. Argued April 29, 2026—Decided June 25, 2026*

The question presented is whether respondents, who challenge the termination of Temporary Protected Status (TPS) for aliens from Syria and Haiti, are entitled to orders postponing the terminations during litigation. Congress created TPS in 1990 to provide short-term humanitarian relief for aliens who cannot safely return to their home countries. Although designed to afford temporary relief, TPS designations in practice have often lasted for decades.

Syria received a TPS designation in 2012 because of "extraordinary and temporary conditions" related to the repressive regime of Bashar al-Assad, 77 Fed. Reg. 19027, and in September 2025, the Secretary of Homeland Security provided public notice that Syria's TPS designation would terminate, 90 Fed. Reg. 45402. Seven Syrian nationals sued in the Southern District of New York asserting claims under the Administrative Procedure Act (APA) to stop the termination. The District Court concluded that the plaintiffs were entitled to interim relief under 5 U. S. C. § 705. The Second Circuit denied the Government's request for a stay.

Page Proof Pending Publication

Haiti received a TPS designation in 2010 after a devastating earthquake, 75 Fed. Reg. 3477, and in November 2025, the Secretary provided public notice that Haiti's TPS designation would terminate, 90 Fed. Reg. 54739. Five Haitian nationals sued in the District Court for the District of Columbia asserting claims under the APA and charging that the termination of Haiti's TPS designation violated the constitutional right to equal protection because it was motivated by race. The District Court granted interim relief, and a divided D. C. Circuit panel declined to issue a stay. The Government sought a stay and a writ of certiorari before judgment in both cases. This Court granted review, consolidated the cases, and deferred ruling on the stay applications.

Held:

1. The TPS statute bars judicial review of non-constitutional claims. Pp. 338–345.

---

*Together with No. 25–1084, *Trump, President of the United States, et al.* v. *Miot et al.*, on certiorari before judgment to the United States Court of Appeals for the District of Columbia Circuit.

Syllabus

(a) Title 8 U. S. C. § 1254a(b)(5)(A) provides that "[t]here is no judicial review of any determination of the [Secretary of Homeland Security] with respect to the designation, or termination or extension of a designation, of a foreign state." The term "determination" may mean either an individual decision or the process leading to a decision. Under either understanding, § 1254a(b)(5)(A) bars all of respondents' non-constitutional claims. Further, the phrase "with respect to" "generally has a broadening effect, ensuring that the scope of a provision covers not only its subject but also matters relating to that subject." *Patel* v. *Garland*, 596 U. S. 328, 339 (internal quotation marks omitted). Pp. 338–340.

(b) Respondents and the courts below offer no sound theories to overcome the plain meaning of the judicial-review bar. Pp. 340–345.

(1) Respondents' argument that § 1254a(b)(5)(A) applies only to substantive claims, not those based on alleged procedural errors, finds no support in the statutory language because a "determination" may concern procedural or substantive questions. Respondents' reliance on *McNary* v. *Haitian Refugee Center, Inc.*, 498 U. S. 479, and *Bowen* v. *Michigan Academy of Family Physicians*, 476 U. S. 667, is misplaced because those decisions turned on the specific wording of different provisions and did not adopt the broad principle that the term "determination" applies only to substantive matters. Pp. 340–342.

Page Proof Pending Publication

(2) *Doe* respondents' argument that "determination" refers only to an assessment of country conditions finds no support in the statute's text or context and contravenes the principle that we give common terms their ordinary meaning. See *Yellen* v. *Confederated Tribes of Chehalis Reservation*, 594 U. S. 338, 353. Pp. 342–344.

(3) Respondents' attempt to limit the judicial-review bar to the Secretary's ultimate "determination"—not any subsidiary decision—is inconsistent with the plain meaning of the statutory text and contradicts the administrative-law principle that subsidiary decisions merge into final agency action. See *Army Corps of Engineers* v. *Hawkes Co.*, 578 U. S. 590, 597–598. Pp. 344–345.

2. *Miot* respondents' equal protection claim—that Haiti's TPS designation was terminated because of race—is unlikely to succeed. Ironically, respondents themselves offer a race-neutral explanation for the Government's action: namely, that the current administration, which has terminated every TPS designation that has come up for renewal, simply opposes the TPS program as it has been implemented in the past.

The Court assumes for the sake of argument that heightened scrutiny applies and that it must determine whether a "discriminatory purpose [was] a motivating factor in the decision" to terminate Haiti's TPS designation, *Arlington Heights* v. *Metropolitan Housing Development Corp.*, 429 U. S. 252, 265–266. Because application of that standard calls for

consideration of the context in which a challenged statement was made, *id.*, at 267–268, the immigration context is an important factor.

None of the cited statements by either the President or the Secretary was overtly racial, and in substance all expressed policy views that could rest on race-neutral justifications. Viewing all the relevant evidence, *Miot* respondents are unlikely to prove that race was a motivating factor in the decision to terminate Haiti's TPS designation, and it follows that they are not entitled to interim relief on their equal protection claim. Pp. 346–350.

Reversed and remanded.

ALITO, J., announced the judgment of the Court and delivered the opinion of the Court except as to Part III–A. ROBERTS, C. J., and THOMAS and KAVANAUGH, JJ., joined that opinion in full, and GORSUCH and BARRETT, JJ., joined except for Part III–A. THOMAS, J., filed a concurring opinion, *post*, p. 350. KAGAN, J., filed a dissenting opinion, in which SOTOMAYOR and JACKSON, JJ., joined, *post*, p. 357.

Solicitor General Sauer argued the cause for petitioners in both cases. On the briefs were *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Deputy Assistant Attorney General Ensign*, *Libby A. Baird*, and *Sarah E. Welch*.

Reader Proof Not Final Publication

Ahilan T. Arulanantham argued the cause for respondents in No. 25–1083. With him on the brief were *Jessica Karp Bansal*, *Emilou MacLean*, *Shilpi Agarwal*, *Cecillia D. Wang*, *Evelyn Danforth-Scott*, *Guadalupe V. Aguirre*, *Ghita R. Schwarz*, *Megan M. Hauptman*, *Golnaz Fakhimi*, *Marc Van Der Hout*, *Johnny Sinodis*, and *Carmen Iguina Gonzalez*.

Geoffrey M. Pipoly argued the cause for respondents in No. 25–1084. With him on the brief were *Andrew E. Tauber*, *Ira J. Kurzban*, *Sejal Zota*, *Jean-Claude Andre*, and *Raymond Audain*.†

---

†Briefs of *amici curiae* urging reversal in both cases were filed for the State of Iowa et al. by *Brenna Bird*, Attorney General of Iowa, *Eric Wessan*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Chris Carr* of Geor-

JUSTICE ALITO announced the judgment of the Court and delivered the opinion of the Court with respect to all but Part III–A, and an opinion with respect to Part III–A, in

---

gia, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Catherine Hanaway* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Dave Yost* of Ohio, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, and *John B. McCuskey* of West Virginia; for the Federation for American Immigration Reform by *Christopher J. Hajec* and *Matt A. Crapo*; and for Sen. Ted Cruz by *James R. Conde*.

Briefs of *amici curiae* urging affirmance in both cases were filed for the Commonwealth of Massachusetts et al. by *Andrea Joy Campbell*, Attorney General of Massachusetts, *Tasha J. Bahal*, Deputy State Solicitor, *Isabelle Longfellow*, Assistant Attorney General, by *Rob Bonta*, Attorney General of California, *Michael L. Newman*, Senior Assistant Attorney General, *Vilma Palma-Solana*, Supervising Deputy Attorney General, and *Annabelle Wilmott* and *Jesse Basbaum*, Deputy Attorneys General, by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, and *Alex Hemmer*, Deputy Solicitor General, and by *Letitia James*, Attorney General of New York, *Barbara D. Underwood*, Solicitor General, *Judith N. Vale*, Deputy Solicitor General, *Cleland B. Welton II*, Assistant Solicitor General, *Zoe Levine*, and by the Attorneys General for their respective jurisdictions as follows: *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Brian L. Schwalb* of the District of Columbia, *Anne E. Lopez* of Hawaii, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Jennifer Davenport* of New Jersey, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, *Jay Jones* of Virginia, and *Nicholas W. Brown* of Washington; for Administrative Law Professor Adam B. Cox et al. by *Joshua M. Wesneski*; for the American Federation of Labor & Congress of Industrial Organizations (AFL–CIO) et al. by *Matthew Ginsburg* and *Andrew Lyubarsky*; for the American Immigration Lawyers Association et al. by *Alan Schoenfeld*; for Economists by *Vincent Levy*; for Former Ohio State Attorneys General by *Richard W. Mark*; for Former Senior Government Officials by *Jed W. Glickstein*, *Bruce Swartz*, and *Mary J. Hahn*; for the Haitian American Lawyers Association of Illinois et al. by *Rodney L. Pepe-Souvenir*, *Sandra Dieudonne*, *Stephanie Delia*, and *Judie Lyn Smith*; for the Haitian Lawyers Association by *Steve Art*, *Emmanuella A. Telfort*, *Michaèl's Déborah*

Page Proof Pending Publication